

**SENATE . . . . . No. 2128**

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**The Commonwealth of Massachusetts**

PRESENTED BY:

***Peter J. Durant***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the commissioner of capital asset management and maintenance to convey certain land in the town of Brookfield.

PETITION OF:

| NAME:                            | DISTRICT/ADDRESS:              |
|----------------------------------|--------------------------------|
| <i>Peter J. Durant</i>           | <i>Worcester and Hampshire</i> |
| <i>Donald R. Berthiaume, Jr.</i> | <i>5th Worcester</i>           |

# SENATE . . . . . No. 2128

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By Mr. Durant, a petition (accompanied by bill, Senate, No. 2128) of Peter J. Durant and Donald R. Berthiaume, Jr. for legislation to authorize the commissioner of capital asset management and maintenance to convey certain land in the town of Brookfield. State Administration and Regulatory Oversight.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 2991 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act authorizing the commissioner of capital asset management and maintenance to convey certain land in the town of Brookfield.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. (a) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the  
2   General Laws or any other general or special law to the contrary, the commissioner of capital  
3   asset management and maintenance, in consultation with the department of the state police, may  
4   convey to Mary Faugno-Wiles a certain parcel of land in the town of Brookfield. The parcel  
5   consists of 35,000 square feet, more or less, and is shown on a plan of land entitled “Plan of  
6   Land at 14 Mill Street”, dated March 23, 2021, prepared by Summit Engineering & Land  
7   Survey, Inc. and described in a deed recorded in the Worcester district registry of deeds in book  
8   2514, page 139. Such plan of land shall be placed on file with the division of capital asset  
9   management and maintenance. The conveyance shall be subject to such additional conditions

and restrictions as the commissioner of capital asset management and maintenance, in consultation with the department of state police, may prescribe.

(b) As consideration for the conveyance of the parcel of land described in subsection (a), Mary Faugno-Wiles shall convey to the commissioner of capital asset management and maintenance a certain parcel of land on South Maple street in the town of Brookfield consisting of 38,000 square feet, more or less, and shown on the plan of land described in subsection (a) and described in a deed recorded in the Worcester district registry of deeds in book 21493, page 111 or such other land or interest in land as the commissioner of capital asset management and maintenance, in consultation with the department of the state police, may deem appropriate.

(c) As further consideration for the conveyance in subsection (a), Mary Faugno-Wiles shall pay the difference between the full and fair market value of the parcel described in subsection (a) and the full and fair market value of the parcel described in subsection (b). The commonwealth shall not be obligated to pay any consideration to Mary Faugno-Wiles if the full and fair market value of the parcel of land described in subsection (b) exceeds the full and fair market value of the parcel described in subsection (a). The full and fair market value of the parcels shall be determined by the commissioner of capital asset management and maintenance on the basis of independent appraisals commissioned by the commissioner.

(d) The commissioner of capital asset management and maintenance shall submit the appraisal or appraisals to the inspector general for review and approval, which shall include an examination of the methodology utilized for the appraisal or appraisals. The inspector general shall file the report with the commissioner of capital asset management and maintenance who shall submit copies of the appraisals and the inspector general's review and approval to the house

and senate committees on ways and means and the joint committee on state administration and regulatory oversight not less than 15 days prior to the execution of documents effecting the transfers described in section 1.

(e) Any consideration paid by Mary Faugno-Wiles to the commonwealth for the conveyance authorized by this act shall be deposited into the General Fund.

SECTION 2. Mary Faugno-Wiles, or any successors or assigns, shall be responsible for all costs that the commissioner of capital asset management and maintenance may deem necessary to complete the conveyances authorized by section 1 including, but not limited to, the costs of all appraisals, surveys, deeds and other document preparation, recording or filing fees and any other expenses.